DEARTMENT OF HEALTH & HUMAN SERVICES

NOTICE OF FINAL INTERVIEW AND RIGHT TO FILE FORMAL

Secure Data Transfer

Date: April 12, 2023

To: Kevin Turnage

From: Michelle Homer, EEO Counselor

Subject: Notice of Final Interview and Notice of Right to File a Formal Discrimination Complaint
Agency File No.: HHS-IHS-0296-2023

You contacted the EEO Office on March 29, 2022, and have indicated your desire to address your workplace issues related to: Non-Sexual Harassment, to include disparate treatment of awards, adverse actions, the FMLA process, on the basis of Sex (Male), Age (Over 40), and Retaliated against when raised issues of Sexual Harassment by a management official, placed on administrative leave for no shorter than 10 days with no clarification, escorted off of the Service Unit Property by Security and placed on 120-day detail without explanation. The informal stage of limited inquiry has been completed without resolution and this issuance of **the notice of the right to file** closes the informal stage.

Your Equal Employment Opportunity (EEO) discrimination pre-complaint has not been resolved, and you are now entitled to file a formal complaint of discrimination under Title 29 Code of Federal Regulations (C.F.R.) Part 1614. If you believe that you have been discriminated against on the bases of race, color, religion, sex (including pregnancy, sexual orientation, and gender identity), national origin, age, mental/physical disability, GINA and/or retaliation for participation in protected EEO activities, or for opposing an unlawful employment practice under the anti-discrimination laws, **you have the right to file a formal complaint of discrimination within fifteen (15) calendar days after your receipt of this notice** pursuant to 29 C.F.R. § 1614.105(d).

If you wish to file a formal complaint, complete and sign the "Formal Individual Complaint Form for Employment Discrimination" and email the Formal Complaint to the following email address:

IHSDMEEOStaff@ihs.gov

If you are unable to email the Formal EEO Complaint to the email address listed above, please mail the Formal Complaint to the following address:

Angela Porter, EEO Director
Diversity Management and EEO Staff
5600 Fishers Lane, Mailstop 08E61
Rockville, Maryland 20857

A complaint shall be deemed timely if it is received or postmarked before the expiration of the 15 calendar day filing period, or in the absence of a legible postmark, if it is received by mail within five calendar days of the expiration of the filing period.

The complaint must contain only those issues either specifically discussed with the EEO Counselor or issues that are like or related to those discussed. It must also state whether you have filed a grievance under a negotiated grievance procedure or an appeal to the Merit Systems Protection Board (MSPB) on the same claims.

Should you file a formal complaint with the Agency, it is your responsibility to immediately notify this office in writing if you retain an attorney or any other type of representative. You and/or your representative will receive a written acknowledgment of your formal discrimination complaint from the appropriate Agency official.

Please refer to the "Notice of Rights and Responsibilities" for specific information in connection with the processing of your EEO complaint, to include your rights when alleging age discrimination, a violation of the Equal Pay Act, or raising a claim that is appealable to the MSPB. Should you have further questions regarding the EEO complaint process, please contact Angela Porter, Director, DMEEO Staff, at (301) 443-1108.

Kevin Turnage

April 13, 2023
Date

Attachment (Formal Complaint Form – If you wish to file a formal complaint fill out the formal complaint form and submit)

Department of Health & Human Services

INDIAN HEALTH SERVICE
FORMAL INDIVIDUAL COMPLAINT FORM FOR EMPLOYMENT DISCRIMINATION
Agency File No.: HHS-IHS-0296-2023

FORMAL COMPLAINT OF DISCRIMINATION IN THE FEDERAL GOVERNMENT

PRIVACY Act Statement (6 U.S.C. Section 552A)

AUTHORITY: 42 U.S.C. 2000e-16(b) and (c); 29 U.S.C. Chapter 14; E.O. 12106.
Purpose: Used for processing of complaints of discrimination because of race, color, national origin, religion, sex, age, physical or mental disability or reprisal by the agency civilian employees, former employees or applicant for employment.

Routine Uses: Information will be used (a) as a data source for complaint information for production of summary descriptive statistics and analytical studies of complaints processing and resolution efforts and may also be used to respond to general requests for information under the Freedom of Information Act; (b) to respond to request from legitimate outside individuals or agencies (Congress, White House, Equal Employment Opportunity Commission) regarding the status of a complaint or appeal; or (c) to adjudicate a complaint or appeal.

Disclosure: Voluntary, however, failure to complete all appropriate portions of this form may lead to rejection of a complaint on basis of inadequate data on which to determine if a complaint is acceptable.

1. **Your name as complainant**:
Kevin Dean Turnage

2. **Your home address**:
955 E Pinto CT Gilbert AZ 85296

3a. **Your home phone No:** :
901-220-8664

3b. **Work Telephone**:
602-263-1200

4. **Name and address of the Agency where you currently work**:
Phoenix Indian Medical Center
4212 N 16th Street
Phoenix AZ 85016

5. **Do your have a representative?**

☐ a. YES (Complete Item 6) ☑ b. NO

6. **If yes, provide name, address and teephone number of your representative::**

Is your representative an attorney?

☐ YES ☐ NO

7a. **Name and address of the Agency (Duty Station) where the alleged discrimination occurred:**
Phoenix Indian Medical Center
4212 N 16th Street
Phoenix AZ 85016

7b. **Name and Title of Management Official responsible for the alleged discrimination:**

8. **Date of most recent act of alleged discrimination**:
April 13, 2023

9. **Are you a bargaining unit employee?**

☐ YES ☑ NO

10. **Are you a Federal Employee or job Applicant?**

☑ a. EMPLOYEE: Position Title, Job Series, Grade
Supervisory Clinical Nurse GS 0610 12

☐ b. APPLICANT

11. **Reason you believe you were discriminated against** Check all that apply below:

✓	a. **Race** (If so, state your Race): Caucasian		**e. Disability** (If so, state your Disability): ☐ Physical: ☐ Mental:
✓	**b. Color** (If so, state your skin Color): White	✓	f. **Age** (If so, state your Age and Date of Birth): 49 April 17, 1973
✓	**c. Religion**: (If so, state your Religion): Christian	✓	g. **Sex:** (If so, state your Sex or LGBT status): Male
	d. **National origin**: (If so, state your National Origin):	✓	h. **Retaliation/reprisal** (If so, state date and nature of your participation in an EEO-protected activity or opposition to discriminatory practices.): March 21, 2023 Retaliation for filing EEO

12 a. Did you discuss your issue with an EEO counselor?	12b. **If "yes," name of EEO Counselor:**	12c. **Date you first contacted an EEO Counselor**:	13. **Date received you notice of a final interview and right to file:**
☑ a. YES (Complete 12b) ☐ b. NO	Michelle Homer	March 6, 2023	April 12, 2023

14. **SELECT THE ISSUE(S)/CLAIM(S) BELOW THAT BEST DESCRIBE(S) YOUR COMPLAINT.** Briefly explain how you were discriminated against and identify the specific incidents or events and dates on which they occurred; *i.e.*, tell how you were treated differently from other employees or applicants because of your race, color, religion, sex, national origin, age, mental or physical disability, or retaliation. See Instructions.

Issue: Check all that apply		Specifically Explain:
Appointment/Hire		
Harassment (non-sexual)		
Promotion/Selection		
Disciplinary Action		
Performance Appraisal/ Evaluation	X	Threatened to change my performance appraisal rating to a lower rating March 2, 2023
Training		
Assignment of Duties	X	Removed me from my position of record 03/21/2023
Duty Hours		

Medical Examination		
Reasonable Accommodation		
Awards		
Reassignment Denied/Directed	X	Reassigned to Quality and Performance Improvement
Reinstatement		
Retirement		
Time and Attendance		
Pay- Including Overtime		
Conversion to Full-time		
Examination/Test		
Terms and Conditions of Employment	X	Detailed me for 120 days that can be extended

Additional narrative explaining the reasons you believe you were discriminated against. (Please describe the specific claim here if you did not identify one of the claims above.)

See Attachment 1

15. **Remedy/Resolution:** Please describe the terms, conditions, corrective actions, and remedial relief you are seeking in Resolving or adjudicating your complaint.

Returned to Position of Record as it was when detailed out over the same departments I was over. All executives required to attend additional training regarding harassment and discrimination. Consent Degree that all investigations against managers will be submitted to an outside investigatory agency within 5 days. Training for all IHS staff on grievance processes since the guidance from the agency is interpreted differently depending on how they need it to fit their narrative. A consent decree is necessary since the agency has shown they are incapable of adhering to their own policies and procedures including Director Memos, IHS Circulars, Indian Health Manual, HHS guidance ecetera.

16. **Have any of the incidents listed in item 14 been appealed to The Merit System Protection Board (MSPB) or filed under a Negotiated Grievance Procedure?**

☐ a. YES Explain. (Include date and case number.)

☑ b. NO

17. **SIGNATURE OF COMPLAINANT**:

18. **Date you signed your complaint:**

April 13, 2023

19. **Date Complaint filed** (EEO Office use):

READ INSTRUCTIONS CAREFULLY

This form should be used only if you, as an applicant for Federal employment, or a current or former Federal employee, believe you have been discriminated against based on your race, color, religion, sex, national origin, age, disability, or retaliation by a Federal agency, and have presented the matter for informal resolution to an Equal Employment Opportunity (EEO) Counselor, and you have either received your Notice of Final Interview/Right to File Formal or more than thirty (30) calendar days have elapsed from your date of initial contact, and the matter remains unresolved.

A formal complaint of discrimination must be filed within fifteen (15) calendar days of your, or your attorney's, if applicable, receipt of the Notice of Final Interview/Right to File Formal. You may submit this form by hand-delivery/mail to [OPDIV EEO Office Address] or fax [OPDIV EEO Office Fax #]. It must be postmarked or received on or before the fifteenth (15th) calendar day from your/your attorney's receipt of the Notice of Final Interview/Right to File Formal. It is your responsibility to keep the [OPDIV EEO Office] informed of your current address. Should your address or contact information change, you must notify the HQ Office immediately.

In completing this form, it is very important that:

1. You provide the date(s) of the alleged discriminatory action(s). Dates are used to determine timeliness, and in accordance with the Equal Employment Opportunity Commission's (EEOC) regulations, an individual must initiate contact with an EEO Counselor within forty-five (45) calendar days of the date the incident(s) occurred or, if a personnel action, within forty-five (45) calendar days of its effective date.
2. You state clearly the action(s) which you allege a Federal agency took or failed to take that you believe to be discriminatory. What action(s) was taken or not taken that led you to contact an EEO Counselor?
3. You focus on the claims(s) raised with the EEO Counselor or like or related claim(s). Your formal complaint should include only those claim(s) on which you were counseled and wish to pursue through the formal complaint process. This may be all or only some of the claim(s) raised during the pre-complaint process. You decide what claim(s) you want to continue to pursue. Claim(s) raised in the formal filing that were not raised with the EEO Counselor or are not like or related to the claim(s) raised can be dismissed or referred for EEO counseling.

Example: On September 20, 2005, my immediate supervisor, John Doe, advised me that I was not selected for a GS-14, Attorney position under Vacancy Announcement Number H-05-89. I believe the non-selection was based on my race (Asian) because the selectee, Tom Jones, is White and has less litigation experience than I do. Also, on October 3, 2005, I received a Reprimand from Mr. Doe. I believe the Reprimand was issued in retaliation for initiating this EEO complaint on September 22, 2005. Other employees such as Mary Smith arrive late for work but are not disciplined.

Should you need additional space in completing this form, attachments are permitted. However, please note that it is not necessary or encouraged for you to submit documentary evidence relating to the merits of your complaint with your formal filing. Such information should be provided to an EEO investigator if your complaint is accepted for investigation. If the OPDIV EEO Office needs additional information or clarification in accepting or dismissing your claim(s), you will be contacted.

Subsequent to filing this formal complaint, you will receive a letter from the OPDIV EEO Office acknowledging receipt of your complaint and providing you with specific information about your rights and responsibilities. Should you have questions in the interim, please contact Loretta Grey Cloud at (301) 443-1108.

If any or all of your claims are accepted for investigation, you will be contacted by an EEO investigator. You should cooperate with and present to the investigator all evidence and documentation you have in support of your claim(s) as well as the names of potential witnesses. Should your complaint be dismissed and not accepted for investigation, you will be advised of appropriate appeal rights.

Candace Lee Chief Nursing Officer GS 0610 14 and I were in my office catching up. The first time back in late September or early October 2022, as she got ready to leave, she hugged me. I told her not to do that again. In November 2022, when she was leaving, she hugs me again. I again told her she should not do that. Then every time she saw me, she would say, "I don't regret that hug." I have told her more than once I only hug my close family, not my co-workers. Her pervasive constant remarks, reminders and harassment continued both verbally and in writing and culminated in a quid pro quo situation and threat on March 2, 2023 when Ms. Lee threatened me that if I grieved my Performance Appraisal she would give me a 2 which means partially achieved expected expectations. A rating lower than I was already scored. This continued harassment environment has made me feel that I need to compromise my morals to retain my position. I worried she would continue to hold my objections against me because she wants someone who knows how to be a team player. When I did address the issue exactly what I feared would occurr happened on March 21, 2023 at 0731 as 15 days had already passed since notifying management and the local EEO officer and 19 days since the event occurred and there is a statutory timeline of 45 days to file the EEO complaint, therefore I escalated my concerns to EEO at headquarters and Director Tso. Within a few hours of me escalating I was called on my personal cell phone by Debra Ward Lund and was told to report to collect my personal belongings and report to administration building by Debra Ward Lund Chief the Executive Officer (Acting) and to bring all government property. Upon arrival the government property was taken and I was placed on administrative leave for ten (10) days with a reason of administrative review. I was then escorted off property by security and all my access to government sites were deactivated. This was followed up by an illegal directive sent to my personal email address by Brandi Benjamin Assistant Chief Nursing Officer – Ambulatory GS 0610 13 instructing me not to communicate with anyone outside of the Phoenix Indian Medical Center. I am aware of administration tampering with witnesses and telling them to sign statements that they did not make and intimidating them. Specifically, Jason White and Megan Wohr is the information I was given. This tampering occurred in an alleged form of misconduct against me that to date I still have not been informed of the alleged misconduct against me. It appears that the agency devised a plan to discredit and get rid of me since I had filed the complaint against Ms. Lee. I am a married Caucasian male over the age of 40 and have been the subject of sexual and non-sexual harassment, discrimination and retaliation by the agency. I have been allowed to return to work however not in my position of record and have been detailed to a position that has been vacant for over 2 years under the guise of it being a mission critical detail. Upon arriving 2 weeks ago I did not have access to the men's restroom without going to another department and borrowing a key. I was finally given a restroom key after a week. I was told I could maintain my tour of duty of 0630-1500 M-F but I have not been provided keys to get in the office I am detailed to and have to wait outside until 0730-0800 for someone else to arrive and let me in the office when the area with the homeless encampments and individuals with psychological issues coming up to you the entire time begging for money and then cursing you out when you refuse so I am having to deal with that harassment as well. Management including the supervisor I am detailed, her boss and the CEO have all been made aware of this issue and there has been no change nor a sense of urgency to rectify the situation.